IN THE COURT OF APPEALS OF THE STATE OF GEORGIA

Case No. A26A0001

Fictional Holdings, LLC,
Appellant,

v.

Sample County Board of Tax Assessors,
Appellee.

FICTIONAL SAMPLE. Appeal from the Superior Court of Sample County, State of Georgia
Trial court case no. 26-CV-0000

BRIEF OF APPELLEE

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COUNTER-STATEMENT OF THE CASE

The appellee, the Sample County Board of Tax Assessors, valued the appellant's fictional warehouse parcel for tax year 2025 at the figure the appellant now challenges. The appellant contested that valuation before the county board of equalization, which sustained it. The appellant then filed a petition for review in the superior court.

The appellee disagrees with the appellant's account of the disclosure dispute. The scheduling order required expert reports by a fixed date. The appellant's appraisal was not produced in the form the order required until after that date, and the superior court found the late production unjustified. The appellee's position is that the exclusion was a proper exercise of the court's discretion and that the remaining valuation evidence supports the assessment.

COUNTER-STATEMENT OF FACTS

The parcel is a fictional twelve-acre tract with a single-story building. The appellee's assessor valued the parcel using sales comparison data from three transactions in the same county during the relevant period. The assessor documented the basis for each comparison in the assessment file.

The appellant's appraiser inspected the building in January 2025. The appellant's appraisal was dated after that inspection and was not produced to the appellee as an expert report until several months later. The appellee's counsel

objected at the hearing that the document did not comply with the scheduling order, and the appellant did not offer an explanation for the delay.

The superior court considered the objection, heard argument, and excluded the appraisal. The court then reviewed the sales comparison data and found that the assessment was supported by evidence in the record.

ARGUMENT AND CITATION OF AUTHORITY

I. The superior court acted within its discretion in excluding the late appraisal

A trial court has broad discretion to enforce its scheduling orders, and a reviewing court will not disturb the exclusion of evidence for late disclosure absent an abuse of that discretion. Fictional placeholder citation: *Example v. Placeholder*, 000 Ga. App. 000 (2020).

A. The appraisal was produced after the deadline

The scheduling order set a fixed date for expert reports. The appellant's own correspondence, which is in the record, shows that the appraisal was delivered after that date. A party that misses a deadline set by a court order must show good cause for the delay, and the appellant did not offer any.

> A trial court may enforce its scheduling order by excluding evidence whose disclosure was untimely, where the party offering the evidence has not shown good cause. Fictional block quotation for layout testing only.

B. The appellant's prejudice argument is misplaced

The appellant argues that the appellee suffered no prejudice because it had the appraisal before the hearing. But the scheduling order exists so that a party can prepare its response before the hearing, and the appellee's counsel had only days to evaluate a report that the order required much earlier. The superior court was entitled to weigh that burden. Fictional placeholder citation: *Sample v. Example Board*, 000 Ga. 000 (1999).

II. The remaining evidence supports the valuation

Once the appraisal was excluded, the court still had the appellee's sales comparison data. The appellant says that data is not comparable because one transaction involved a parcel with a different zoning classification. That goes to weight, not admissibility, and the superior court was entitled to give the comparison the weight it deserved.

The appellant does not explain why the zoning difference would have changed the result. It does not identify any adjustment the assessor should have made, or the amount of that adjustment. An appellant that challenges a valuation must show that the evidence it relies on compels a different value, and the appellant has not done so.

1. The assessor's file documents each comparison and its basis.

2. The superior court expressly considered the zoning difference before accepting the comparison.

III. The cost award was proper

The appellant argues that the costs award must fall with the judgment. The appellee agrees that the award depends on the judgment. But the judgment should stand, and so should the award. The appellant's argument that the counterclaim was no longer pending is a separate matter that the appellant did not raise in the superior court. A matter not raised below is not preserved for review. Fictional placeholder citation: *Example v. Placeholder*, 000 Ga. App. 000 (2020).

CONCLUSION

The judgment of the superior court should be affirmed.

November 20, 2026

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